

Malti Sharma v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 13 December 2019 · Writ-C No. 41342 of 2019 · **Writ disposed; licensee to consider the new-connection application and pass a speaking order either way within four weeks.**

HEADNOTE

Clauses 4.1, 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005 oblige the distribution licensee to consider a new-connection application and, if there is no legal impediment, to grant the connection speedily within a month. Unexplained inaction—neither grant nor reasoned refusal—is unjustified. The High Court did not itself grant supply to the tenant-petitioner; it directed Dakshinanchal Vidyut Vitran Nigam Ltd. to consider her application and pass a reasoned order either way within four weeks.

FACTUAL SUMMARY

Malti Sharma occupied a house in Mainpuri as tenant of respondents 3 and 4, taking supply through the landlords' connection from their father's time. After she sued for injunction against eviction, the landlords had that connection disconnected. She applied to Dakshinanchal Vidyut Vitran Nigam Ltd. for a fresh connection and submitted an indemnity bond under the 2005 Code, but the licensee demanded further proof of possession and took no decision. She sought a mandamus to compel grant of the connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

new connection — duty to consider and decide

HOLDING

Clauses 4.1, 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005 cast an obligation on the licensee to consider an application for a new electricity connection and, if there is otherwise no legal impediment, to ensure that the connection is granted speedily within a month. There is no justification for lingering without taking a decision either to grant the connection or to refuse it with reasons. The Court directed the licensee to consider the petitioner's application and pass a reasoned speaking order either way within four weeks of production of a certified copy. ¶ 1

PRINCIPLE TAGS

new-connection-duty-to-consider Chapter IV clauses 4.1, 4.3 and 4.4 require the licensee to consider a new-connection application and, absent legal impediment, to grant supply speedily within a month; unexplained inaction warrants a direction to decide by speaking order, not a merits grant of connection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TENANT-PETITIONER WAS ENTITLED ON THE MERITS TO A NEW CONNECTION, INCLUDING SUFFICIENCY OF THE INDEMNITY AND POSSESSION PAPERS AND EXISTENCE OF ANY LEGAL IMPEDIMENT

The Court directed a reasoned decision either way and did not grant or refuse the connection. ¶ 1

NOT DECIDED — THE LANDLORD-TENANT DISPUTE AND THE PENDING CIVIL INJUNCTION SUIT

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